No. 25-10979

IN THE UNITED STATES COURT OF APPEALS FOR THE FIFTH CIRCUIT

In the United States Court of Appeals
for the Fifth Circuit

Mary Dawes, Individually and the Administrator of the Estate of Decedent Genevive A. Dawes; Alfredo Saucedo; Virgilio Rosales,
Plaintiffs – Appellants

Mary Dawes, Individually and the Administrator of the Estate of Decedent Genevive A. Dawes; Alfredo Saucedo; Virgilio Rosales,

Plaintiffs – Appellants

v.

City of Dallas; Christopher Hess; Jason Kimpel,
Defendants – Appellees

v.

Appeal from the United States District Court for the Northern District of Texas, Dallas Division

City of Dallas; Christopher Hess; Jason Kimpel,

Defendants – Appellees

BRIEF OF APPELLEE CITY OF DALLAS

Appeal from the United States District Court
for the Northern District of Texas, Dallas Division

BRIEF OF APPELLEE CITY OF DALLAS

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~~CERTIFICATE OF INTERESTED PERSONS~~

EXEMPTION FROM CERTIFICATE OF INTERESTED PERSONS

The Appellee-Defendant City of Dallas (the "City"), as a governmental party, is exempt from the requirement to certify interested persons under Local Rule 28.2.1.

The Appellee-Defendant City of Dallas (the "City"), as a governmental party, is exempt from the requirement to certify interested persons under Local Rule 28.2.1.

s/ J. Cheves Ligon
Assistant City Attorney

/s/ J. Cheves Ligon
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City of Dallas

STATEMENT REGARDING ORAL ARGUMENT

The City believes oral argument is not necessary because the factual and legal issues in this appeal involve settled issues of law, so argument will not assist this Court in determining whether the evidence in the record creates a fact issue as to Appellants' *Monell* claims.

STATEMENT REGARDING ORAL ARGUMENT

The City believes oral argument is not necessary because the factual and legal issues in this appeal involve settled issues of law, so argument will not assist this Court in determining whether the evidence in the record creates a fact issue as to Appellants' *Monell* claims.

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RESPONSE TO STATEMENT OF ISSUES

1. The district court correctly entered summary judgment in favor of the City because the evidence does not create a genuine issue of material fact concerning the reasonableness of the Officers' use of deadly force under the circumstances.

2. The district court correctly entered summary judgment in favor of the City because this Court's precedent forecloses *Monell* liability against the City on Appellants' failure-to-train claims when this Court has already held that the Officers' conduct did not violate a clearly established constitutional right.

STATEMENT OF THE CASE

This appeal is the second time this case has been heard by the Court. In its prior examination of this case, the Court examined the undisputed facts of the incident at issue. *See generally Dawes v. City of Dallas ("Dawes I")*, No. 22-10876, 2024 WL 2268529 (5th Cir. May 20, 2024), *cert. denied*, 145 S. Ct. 2699 (2025). As such, in addition to citations to the record on appeal, the City cites to the undisputed facts as described by the Court in *Dawes I*.[1]

[1] "The law-of-the-case doctrine generally provides that when a court decides upon a rule of law, that decision should continue to govern the same issues in subsequent stages in the same case." *Winfrey v. Rogers*, 901 F.3d 483, 491 (5th Cir. 2018) (cleaned up). "The doctrine is meant to promote judicial efficiency so that appellate courts do not continually have to reexamine subsequent proceedings in the same case. It forecloses reexamination on a subsequent appeal." *Id.* None of the exceptions to the rule—new evidence, new controlling authority, or a clearly erroneous decision—apply. *Id.*; *see also United States v. Smith*, 814 F.3d 268, 273 (5th Cir. 2016) ("The law-of-the-case doctrine bars reexamination of issues of law or fact decided on appeal in subsequent proceedings in a trial or appellate court."); *Cooper Tire & Rubber Co.*

On January 17, 2017, six officers with the Dallas Police Department ("DPD")—Officers Christopher Hess, Jason Kimpel, Christopher Alisch, Zachary Hopkins, Erin Evans, and Peter Lickwar (the "Officers")—were dispatched to investigate a suspicious vehicle parked in the parking lot of a Dallas apartment complex. *Dawes I*, 2024 WL 2268529, at *1; ROA.805. Dawes and Rosales (together, "Appellants") were inside the vehicle, a Dodge Journey, which had been reported stolen. *Dawes I*, 2024 WL 2268529, at *1; ROA.810-11. Officers Alisch and Hopkins were the first to arrive at the scene. *Dawes I*, 2024 WL 2268529, at *1; ROA.1092 [Hopkins Bodycam 2:30-3:00]. They located the vehicle, "which was boxed in on three of four sides—by fences to the front and left and by another car to the right." *Dawes I*, 2024 WL 2268529, at *1; ROA.1092 [Hopkins Bodycam 3:15]. Officers Alisch and Hopkins immediately began giving loud verbal commands to Appellants to "put [their] hands out the window." *Dawes I*, 2024 WL 2268529, at *1; ROA.1092 [Hopkins Bodycam 3:15-3:30].

SUMMARY OF ARGUMENT

The Court should affirm the district court's judgment. The undisputed facts establish that: the Officers were responding to a call of a suspicious vehicle; the

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or fact decided on appeal in subsequent proceedings in a trial or appellate court."); *Cooper Tire & Rubber Co. v. Farese*, 248 F. App'x 555, 558 (5th Cir. 2007) ("The law of the case doctrine provides that a decision of a factual or legal issue by an appellate court establishes the law of the case and must be followed in all subsequent proceedings in the same case in the trial court.").

SUMMARY OF ARGUMENT

The Court should affirm the district court's judgment. The undisputed facts establish that: the Officers were responding to a call of a suspicious vehicle; the vehicle was reported to be stolen; the Officers identified themselves as police and gave repeated verbal commands to the occupants of the vehicle to show their hands; the occupants of the vehicle ignored the commands; the occupants of the vehicle instead started the engine and began trying to back the vehicle out of parking space striking a fence and patrol car in the process; that two officers were in the path of the vehicle within seconds of when officers initiated force; and the officers that fired their weapons still believed fellow officers were in the vehicle's path and thus in imminent danger. On these facts, the district court correctly held that the Officers' use of force did not violate the Fourth Amendment.

Additionally, even assuming the Officers' force was unreasonable (it was not), the district court correctly entered summary judgment for the City because Appellants failed to demonstrate *Monell* liability. In holding that Appellants could not establish *Monell* liability, the district court correctly applied this Court's controlling precedent holding that where, as here, municipal employees' conduct does not violate a party's rights, the government employer cannot be deemed to have been deliberately indifferent—a failure-to-train theory

ARGUMENT

I. A motion for summary judgment based on use of force is reviewed de novo.

"The court shall grant summary judgment if the movant shows that there is no genuine dispute as to any material fact and the movant is entitled to judgment as a matter of law." Fed. R. Civ. P. 56(a).

be resolved in favor of the non-moving party." *Matsushita Elec. Indus. Co. v. Zenith Radio Corp.*, 475 U.S. 574, 587 (1986); *Hillman v. Loga*, 697 F.3d 299, 302 (5th Cir. 2012).

To prevail on an excessive force claim, a plaintiff must show that the force employed was "objectively unreasonable." *Graham v. Connor*, 490 U.S. 386, 397 (1989). "Excessive force claims are necessarily fact-intensive; whether the force used is excessive or unreasonable depends on the facts and circumstances of each particular case." *Darden v. City of Fort Worth*, 880 F.3d 722, 728 (5th Cir. 2018) (cleaned up). The focus is not best practices or desired outcomes, but instead, "the touchstone of [the Court's] inquiry is simply the *reasonableness* of the force employed." *Buehler v. Dear*, 27 F.4th 969, 981 (5th Cir. 2022) (emphasis added).

"In making this determination, a court should consider the totality of the circumstances, including the severity of the crime at issue, whether the suspect poses an immediate threat to the safety of the officers or others, and whether he is actively resisting arrest or attempting to evade arrest by flight." *Darden*, 880 F.3d at 728-29 (quoting *Graham*, 490 U.S. at 396). "The 'reasonableness' of a particular use of force must be judged from the perspective of a reasonable officer

Monell claim requires "an underlying constitutional violation."). For the reasons stated below, the salient undisputed facts of this case—as determined in *Dawes I*—show the officers did not violate Appellants' Fourth Amendment rights. As such, their *Monell* claims fail, and the Court should affirm the district court's judgment.

II. The district court correctly rendered summary judgment for the City on Appellants' *Monell* claims on the ground that the Officers did not use unreasonable force under the Fourth Amendment.

Appellants concede the settled principle of law that if a municipality's employee has not violated an individual's constitutional rights, *Monell* liability cannot attach to the municipal employer. (*See* Appellants' Br. 30 ["If the Section 1983 claims against police officers are dismissed because of the lack of a constitutional violation, the claims against the City would also be defeated."].) *See Hicks-Fields v. Harris County*, 860 F.3d 803, 808 (5th Cir. 2017) ("As is well established, every *Monell* claim requires an underlying constitutional violation.").

A. The *Graham* factors show the Officers' use of force was not unreasonable.

Determining whether a use of force was reasonable under the Fourth Amendment "is not capable of precise definition or mechanical application." *Graham*, 490 U.S. 386 at 396 (quoting *Bell v. Wolfish*, 441 U.S. 520, 559 (1979)). Instead, "its proper application requires careful attention to the facts and circumstances of each particular case, including" what are known as the *Graham* factors: (1) "the severity of the crime at issue," (2) "whether the suspect poses an immediate threat to the safety of the officers or others," and (3) "whether he is actively resisting arrest or attempting to evade arrest by flight." *Id.* "The reasonableness of a particular use of force must be judged from the perspective of a reasonable officer on the scene, rather than with the 20/20 vision of hindsight." *Id.* Thus, the central determination is

Determining whether a use of force was reasonable under the Fourth Amendment "is not capable of precise definition or mechanical application." *Graham*, 490 U.S. 386 at 396 (quoting *Bell v. Wolfish*, 441 U.S. 520, 559 (1979)). Instead, "its proper application requires careful attention to the facts and circumstances of each particular case, including" what are known as the *Graham* factors: (1) "the severity of the crime at issue," (2) "whether the suspect poses an

immediate threat to the safety of the officers or others," and (3) "whether he is actively resisting arrest or attempting to evade arrest by flight." *Id.*

CONCLUSION

For the foregoing reasons, the Court should affirm the district court's judgment.

January 30, 2026

Respectfully submitted,

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CERTIFICATE OF SERVICE

I certify that on January 30, 2026, the foregoing document was electronically filed with the Clerk of the Court for the United States Court of Appeals for the Fifth Circuit using the electronic case filing system of the Court. I further certify that I have complied with the privacy and redaction requirements of Fed. R. App. P. 25(a)(5).

Service is made through the Court's Notice of Docket Activity to Thad D. Spalding, Shelby White, and Daryl K. Washington, counsel for Appellants, who have consented in writing to accept such notice as service of this document by electronic means.

s/ J. Cheves Ligon
Assistant City Attorney

CERTIFICATE OF SERVICE

Pursuant to Federal Rule of Appellate Procedure 25(d) and Fifth Circuit Rule 25.2, I hereby certify that on January 30, 2026, the foregoing document was electronically filed with the Clerk of the Court for the United States Court of Appeals for the Fifth Circuit using the electronic filing system of the Court. I further certify that I have complied with the privacy and redaction requirements of Federal Rule of Appellate Procedure 25(a)(5) and Fifth Circuit Rule 25.2.13; that the electronic submission is an exact copy of the paper document; and that the document has been scanned for viruses with the most recent version of a commercial virus scanning program and is free of viruses.

Additionally, on January 30, 2026 a true and correct copy of the foregoing document was served via ECF electronic notice through the Court's Notice of Docket Activity upon Thad D. Spalding, Shelby White, and Daryl K. Washington, counsel for Appellants, who have consented in writing to accept such notice as service of this document by electronic means.

/s/ J. Cheves Ligon
Attorney for City of Dallas

CERTIFICATE OF COMPLIANCE

CERTIFICATE OF COMPLIANCE WITH RULE 32(a)

1. This brief complies with the type-volume limitation of Fed. R. App. P. 32(a)(7)(B) because: this brief contains 1,333 words, excluding the parts of the brief exempted by Fed. R. App. P. 32(f).

Certificate of Compliance with Type-Volume Limitation, Typeface requirements and Type Style Requirements

1. This brief complies with the type volume limitation of FED. R. APP. P. 32(a)(7)(B) because:

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Attorney for City of Dallas

Dated: January 30, 2026